TOWN OF MOUNT PLEASANT, SOUTH CAROLINA
BOARD OF ZONING APPEALS
MAY 21, 2018
MINUTES

Present: Joseph Belton, Chair, David Rubin, Barry Wolff, Stephen Wood, Stephen Duke, Glyn Cowden.
Absent: Bobby Carrier.
Staff: Jeff Ulma, Jim Hinchey, Michael Robertson, Lynnette Lynes

Mr. Belton called the meeting to order at 6:05 pm and reviewed the procedure with the public.

1. Approval of Agenda

Mr. Wolff moved for approval of the agenda. Mr. Rubin seconded the motion. All in favor.

2. Approval of Minutes

Mr. Wolff moved for approval of the minutes. Mr. Cowden seconded the motion. All in favor.

Mr. Belton administered the oath to those speaking.

3. Public Comment & General Correspondence

There being no comments, Mr. Belton continued with the agenda.

A. Request for one year extension of Special Exception S-02-15 in accordance with §156.049 Vested Rights

Mr. Belton stated that the extension of vested rights is allowed by state law.

Mr. Wolff moved for approval of the request. Mr. Cowden seconded the motion. All in favor.

4. **Business**

A. Case V-12-18, 536 Belle Station, TMS# 556-00-00-384, Appeal from the strict application of §156.171 SCHEDULE OF OFF-STREET PARKING SPACE REQUIREMENTS to allow an outdoor patio in a shopping center without providing additional parking spaces

- Mr. Robertson stated that the applicant is working on a resolution without requiring a variance.

- *Mr. Wolff moved to defer the request to the next meeting. Mr. Rubin seconded the motion. All in favor.*

B. Case V-17-18, 48 Robert Mills Circle, TMS 535-06-00-789. Appeal from the strict application of the I'On Planned Development Ordinance to designate lot as "rear yard" type allowing 60% lot coverage instead of "all yard" type allowing 40% lot coverage.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Belton administered the oath to the applicants.

Mr. Robert Dodds and Ms. Julie O'Connor reviewed the request with the Board.

Ms. Jennifer Wellham, 51 Robert Mills Circle, stated that her understanding is that the majority of the lots with homes close to the street were those fronting the marsh. She suggested that porches are a required element for the neighborhood and stated that this plan does not appear to meet this requirement. She expressed concern with child safety and site distance with the home being built close to the road.

Ms. Vickie Countryman, 52 Robert Mills Circle, stated that she met with the applicant to review the plans. She stated that she submitted correspondence as well. She suggested that the rules should be followed. She suggested that the Board make a decision that is best for the entire neighborhood and Town.

Mr. David Countryman, 52 Robert Mills Circle, stated that he does not want his property negatively impacted, but understands that there are needs of their future neighbors. He stated that there is case law regarding a self-created

hardship (Georgetown County Bldg Official vs. Lewis). He suggested that the letter in 1999 should be considered ex parte communication and there is no evidence that the letter was put into law and therefore, should not be included. He suggested that none of the criteria has been met to grant a variance and suggested that the request should not be approved. He suggested that the house plan does not meet the character of the neighborhood.

Mr. Chris Thompson, 44 Robert Mills Circle, suggested that the house plan is too large for the lot and would be a detriment to the neighborhood.

Ms. Shannon Hall stated that the lot coverage not including the pool and back patios is actually closer to 58% lot coverage based on her calculations when inputting the plan into AutoCAD. She stated that variances approved for this subdivision, the average was 47% lot coverage. She suggested that the home is not built to ADA standards and does not include the required porches. She expressed concern with drainage for the lot as well. She suggested that the request should be denied.

Ms. Julie O'Connor, architect for project and resident of l'On, stated that the letter from the developer in October 1999 requested that the lots have only one lot type and was approved by the Town. She suggested that the home does meet ADA requirements and the lot coverage is accurate. She asked that this lot be treated in similar fashion to the other lots in l'On.

Mr. Robertson reviewed correspondence with the Board (attachment 2).

There being no further comments, Mr. Belton closed public comment.

Mr. Wolff asked what the lot coverage is for the majority of the lots in l'On. Mr. Robertson answered that the applicant indicated in their application that the majority of the lots were built at 60% lot coverage.

Mr. Belton asked the proposed lot coverage was for the lot and what the lot coverage is for the neighborhood. Mr. Dodds answered that the standard applied since 1999 until 2017 was 60% lot coverage. Ms. O'Connor answered that she surveyed the homes on Robert Mills Circle and the lot coverage ranged from 43%-52%.

Mr. Wood stated that based on the 1999 letter, he would be in favor of the variance.

Mr. Belton agreed with Mr. Wood. He stated that based on the statistics and the 1999 letter, the request would meet the criteria for a variance. He suggested that the lot was purchased with the understanding that they could build at the 60% lot coverage. He suggested that there is justification to allow the additional lot coverage.

Mr. Cowden stated that the neighbors have 52% and almost 60% lot coverage as well.

Mr. Belton stated that parking is not under the purview of the Board and suggested that the variance is for deviation of the lot type and lot coverage.

Mr. Wolff asked if 50% lot coverage would meet the needs of the applicant. Ms. O'Connor answered in the affirmative and stated that they would like to be considered a rear yard lot type in addition to restricting the lot coverage if desired. Mr. Wolff asked if the Board has purview to dictate the percentage lot coverage. Mr. Robertson answered in the affirmative and stated that the Board can condition the motion.

- *Mr. Wolff moved for approval of the request with the stipulation that the lot coverage not exceed 50% based on the findings that there are extraordinary conditions based on the staff report, the it does not apply to other property in the vicinity, application of ordinance would unreasonably restrict the utilization of the property, and there will not be a detriment to the neighborhood. Mr. Cowden seconded the motion.*

- *Mr. Belton moved to amend the motion to include the additional finding that the other lots in subdivision have exceeded the lot coverage. Mr. Wolff seconded the amendment. All in favor.*

- *Mr. Belton called for a vote on the amended motion. All in favor.*

C. Case S-3-18, 120 Rose Lane, TMS# 532-01-00-161, Request for a Special Exception in accordance with the standards of §156.325 Principle Use

Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow use of Accessory Dwelling Unit as a Bed and Breakfast.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Mr. Cory Barber, applicant, reviewed the request with the Board. He reviewed pictures included in the application with the Board.

There being no comments, Mr. Belton closed public comment.

Mr. Wolff asked if the parking requirement is met. Mr. Robertson answered in the affirmative.

Mr. Belton suggested that the request meets the requirements.

Mr. Wood asked if there is a prohibition on short-term rentals. Mr. Belton answered in the negative. Mr. Robertson stated that the Old Village Historic District restricts short-term rentals.

- *Mr. Wolff moved for approval of the request based on the findings included in the staff report that all criteria has been met. Mr. Rubin seconded the motion. All in favor.*

D. Case S-4-18, 726 Spark Street, TMS# 535-04-00-004, Request for a Special Exception in accordance with the standards of §156.325 Principle Use Table, §156.326 (C)(5)(e)(1-6), and §156.411 (A)(3) to allow use of Accessory Dwelling Unit as a Bed and Breakfast.

- Mr. Robertson reviewed staff comments with the Board (attachment 1).

Ms. Holly Gardner, applicant, reviewed the request with the Board.

There being no comments, Mr. Belton closed public comment.

- *Mr. Wolff moved for approval based on findings of staff report, the criteria has been met. Mr. Wood seconded the motion. All in favor.*

5. Approval of Final Orders

The Board approved final orders.

There being no further business, the meeting adjourned at 7:30 pm.

Submitted by,
L. Lynes
BOZA05212018